

TENTATIVE RULINGS

FOR: July 09, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. B will be heard in Dept. A****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Steven Simas

17PR000062

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on July 07, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Jesus Tejeda Alfaro

21PR000118

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on July 07, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Estate of Mark Wayne Miller

25PR000059

FIRST AND FINAL REPORT OF ADMINISTRATOR ON WAIVER OF ACCOUNT AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF STATUTORY COMPENSATION TO ADMINISTRATOR AND ATTORNEYS, AND REIMBURSABLE EXPENSES TO ADMINISTRATOR AND ATTORNEYS, FOR WITHHOLDING OF A RESERVE, AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The April 06, 2027 Status Hearing Re: Final Distribution is therefore VACATED.

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Conservatorship of Jones, Jonathan Charles

26-24623

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on July 11, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Estate of Stoddard, Clara Juree (G)

26-25033

PETITION FOR FINAL DISTRIBUTION AND WAIVER OF ACCOUNT AND REPORT OF EXECUTOR, PETITION FOR ALLOWANCE OF STATUTORY FEES TO PERSONAL REPRESENTATIVE

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on July 11, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Yiota Patiris, Individually, and as Trustee of the Patiris Family Irrevocable Trust of 2017, created under trust agreement dated May 26, 2017 v. Kalaris Family Vineyard LLC, a Maryland Limited Liability Company et al **23CV000211**

CROSS-COMPLAINANTS’ MOTION TO COMPEL FURTHER RESPONSES FROM CROSS-DEFENDANTS DAN’S CREATIVE ENTERPRISES, INC. AND DANIEL CUNNINGHAM TO FORM INTERROGATORIES (SET ONE), SPECIAL INTERROGATORIES, (SET ONE), AND REQUEST FOR PRODUCTION (SET ONE)

TENTATIVE RULING: The motion is GRANTED in part and DENIED in part. The motion is GRANTED with respect to the request to compel a further response to: (1) Form Rogs (defined below) No. 15.1, and (2) Special Rogs (defined below) No. 32 to Mr. Cunningham and No. 34 to Dan’s Creative. The motion is GRANTED IN PART with respect to the request to compel a further response to Special Rogs Nos. 44-45 to Mr. Cunningham and No. 47 to Dan’s Creative, as further discussed *infra* in Section C.2. The motion is DENIED as to the request to compel a further response to (1) Special Rogs No. 14 to Mr. Cunningham and No. 16 to Dan’s Creative and (2) RPDs No. 21 to Mr. Cunningham and No. 20 to Dan’s Creative. The request for sanctions is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Cross-Complainants move, pursuant to Code of Civil Procedure sections 2030.260 and 2030.290,¹ for an order compelling (1) Cross-Defendant Daniel Cunningham (“Mr. Cunningham”) and Cross-Defendant Dan’s Creative Enterprises, Inc. (“Dan’s Creative”) (collectively, “Cross-Defendants”) to provide supplemental verified responses, without objections, to Cross-Complainant’s propounded Form Interrogatories, Set One (“Form Rogs”), No. 15.1; (2) Mr. Cunningham to provide supplemental verified responses, without objections, to Special Interrogatories, Set One (“Special Rogs”), Nos. 14, 32, 44, and 45, and Requests for Production of Documents, Set One (“RPDs”), No. 21; and (3) Dan’s Creative to provide supplemental verified responses, without objections, to Cross-Complainant’s Special Rogs Nos. 16, 34, and 47 and RPDs No. 20.

Cross-Complainants further move, pursuant to sections 2023.010 and 2030.030, for monetary sanctions to be awarded in favor of Cross-Complainants and against Cross-Defendants.

The Motion is made on the grounds that the responses fail to comply with the requirements of section 2030.220 in that they are not straightforward, and/or are incomplete or evasive.

B. LEGAL STANDARD

On receipt of a response to RPDs, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (§ 2031.310, subd. (a).)

A party moving to compel responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (§ 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

For interrogatories, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but “the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21.) To show an interrogatory seeks relevant, discoverable information “is not the burden of [the party propounding interrogatories]. As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

the questions are not within the purview of the code section.” (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422.)

C. DISCUSSION

By Minute Order dated February 5, 2026, the Court ordered Cross-Defendants to, within 10 days of notice of entry of order, provide verified responses, without objections, to Cross-Complainants’ Form Rogs, Special Rogs, and RPDs, and further imposed monetary sanctions in the amount of \$1,350 against Cross-Defendants. (Declaration of Rafael Rios III, ¶ 5 (“Rios Decl.”).) Cross-Defendants neither opposed that motion, requested oral argument on the tentative ruling posted the day prior to that hearing, nor appeared at the hearing. (*Ibid.*) Cross-Complainants served notice of entry of the February 5 order on February 9. (*Id.*, ¶ 6.) Cross-Defendants did not serve responses until April 17, and, as of the date of signing the Rios Decl., Cross-Complainants have not paid the monetary sanctions. (*Id.*, ¶ 7.)

Cross-Complainants contend the responses contain incomplete, deficient, and evasive answers as follows.

1. Form Rogs No. 15.1

Cross-Complainants contend that Cross-Defendants’ responses to No. 15.1 are deficient because they consist of a single narrative paragraph of general facts, which fail to provide detailed facts and fail to identify which facts support which specific denials or defenses. The Court agrees. (See Separate Statement, 3:1-10.) No. 15.1 specifically directs the responding party to, first, identify *each* denial and/or affirmative defense and, second, *for each*, provide responses as to three sub-parts. Cross-Defendants’ response fails to comply therewith.

Cross-Complainants have therefore met their burden on the motion. By failing to file an opposition, Cross-Defendants have failed to meet their burden of justifying the response. As such, the motion to compel a further response from Cross-Defendants on Form Rogs No. 15.1 is GRANTED.

2. Special Rogs

No. 14 to Mr. Cunningham and No. 16 to Dan’s Creative:

These Special Rogs ask: “Did the plans for the construction of the NEW BRIDGE call for the abutments to be placed outside the 100-year flood water elevation?”

Cross-Complainants argue that Cross-Defendants’ responses do not directly answer yes, no, or state a lack of sufficient information to respond to the interrogatory, and that Cross-Complainants cannot determine with certainty what Cross-Defendants’ position is regarding the plan requirements.

The Court disagrees. Cross-Defendants’ responses include that they “lack[] the expertise to interpret or independently verify engineering or hydrological design criteria reflected in the

plans, including any designation of the 100-year flood water elevation,” then go on to state their position that “the plans do not indicate or require that the bridge abutments be placed outside the 100-year flood water elevation.” (Separate Statement, 5:5-17.)

Although Cross-Defendants failed to file an Opposition to justify their responses, the “general principle [is] that a party who seeks a court’s action in his favor bears the burden of persuasion thereon.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see also Evid. Code § 500.) Here, the Court finds Cross-Complainants’ representation of the responses inaccurate and is therefore not persuaded that a further response is required.

Based on the foregoing, the motion to compel a further response to Special Rogs No. 14 and 16 is DENIED.

No. 32 to Mr. Cunningham and No. 34 to Dan’s Creative:

Cross-Complainants argue that Cross-Defendants’ response fails in two respects. First, it fails to provide the addresses for two individuals identified: Ismael Vaquez and Eddy Vargas. Cross-Complainants contend they need this information to effectively locate, depose, interview, and/or serve a subpoena on these individuals. Second, Cross-Defendants vaguely identify “representatives” of Napa County and other governmental agencies without identifying the specific individuals, which Cross-Complainants contend is too vague to constitute a meaningful response.

The Court finds that Cross-Complainants have met their burden on these Special Rogs. By failing to file an opposition, Cross-Defendants have failed to meet their burden of justifying the response. As such, the motion to compel a further response to Special Rogs Nos. 32 and 34 is GRANTED.

Nos. 44-45 to Mr. Cunningham and No. 47 to Dan’s Creative:

Cross-Complainants argue that Cross-Defendants’ responses fail to provide complete account numbers for responsive bank accounts and credit cards, and further fail to provide the dates the accounts were opened and closed, authorized signatories, and current balances, as requested. With respect to the need for the full account numbers, Cross-Complainants contend that credit card issuers and banks require full account numbers to identify specific accounts and produce records and therefore Cross-Complainants cannot effectively subpoena the records without the full numbers.

The Court finds that the responses provide the authorized users, contrary to Cross-Complainants’ representation. (See Separate Statement, 8:1-6, 8:26-9:4.) The remaining information, however, is missing. By failing to file an opposition, Cross-Defendants have failed to meet their burden of justifying the response. As such, the motion to compel a further response to Special Rogs Nos. 44, 45, and 47 is GRANTED in part. Cross-Defendants shall provide a further response to Nos. 44, 45, and 47 to provide the complete account numbers and a further response to No. 44 to provide the dates the accounts were opened and closed and current

balances as of the time of the response. The parties shall meet and confer regarding the necessity for a protective order concerning the account numbers.

3. RPDs

No. 21 to Mr. Cunningham and No. 20 to Dan's Creative:

These RPDs request all documents identified in response to Special Rogs No. 46 to Mr. Cunningham and No. 52 to Dan's Creative. Those Special Rogs request Cross-Defendants to identify all real property owned, leased, or otherwise used by them and all documents evidencing ownership, lease or use. Cross-Defendants responded that they would produce the requested documents. Cross-Complainants contend that no responsive documents were produced.

First, Cross-Complainants fail to provide evidentiary support for the contention that no responsive documents have been produced. (See generally Rios Decl.) Second, it is unclear what further response Cross-Complainants seek and, to the extent a further response is sought, Cross-Complainants fail to set forth specific facts showing good cause justifying the discovery sought. (See § 2031.310, subd. (b)(1).) Rather, it *appears* Cross-Complainants' true desire is to compel Cross-Defendants to comply with their agreement to produce documents. However, Cross-Complainants nowhere cite to, or discuss, the statutory authority governing such a request.

Based on the foregoing, the motion to compel a further response to these RPDs is DENIED.

D. SANCTIONS

Cross-Complainants request monetary sanctions pursuant to sections 2023.010 and 2023.030 for Cross-Defendants' refusal to provide further responses in compliance with the discovery statutes. Sections 2023.010 and 2023.030 "g[i]ve trial courts a statutory basis for exercising authority to address egregious forms of misconduct not addressed elsewhere in the [Civil Discovery] Act." (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 74.) "A court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 *only* when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision." (*Ibid.* Emphasis added.)

Here, Cross-Complainants' Motion does not raise an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision under the Civil Discovery Act. (See §§ 2031.310, subd. (h), 2030.300, subd. (d).) Cross-Complainants' failure to move for sanctions under those relevant provisions is not clear to the Court. Although the Motion raises a pattern of Cross-Defendants' discovery abuse, the individual occurrences that make up that pattern (i.e., failure to timely response to requests, failure to provide code-compliant further responses, failure to obey court order) have relevant sanction provisions. (See *ibid.*, §§ 2031.300, subd. (c), 2030.290, subd. (c).) Again, Cross-Complainants did not move for sanctions under those relevant provisions. Cross-Complainants have failed to show that sanctions here are

appropriate under sections 2023.010 and 2023.030. For the foregoing reasons, the request for monetary sanctions is DENIED.

Cross-Complainants' request for non-monetary sanctions (see Mem., 8:22-9:12) is DENIED on the grounds that that type of sanction was not included in their Notice of Motion. (§ 2023.040.)

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Balcal Construction, Inc. v. Suzanne Giraudo et al

23CV001364

MOTION FOR ORDERS GRANTING LEAVE TO AMEND CROSS-COMPLAINT ADDING PARTIES AND CAUSES OF ACTION

TENTATIVE RULING: The motion is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendants Louis and Suzanne Giraudo (collectively, "Defendants") move, pursuant to Code of Civil Procedure section 576² and California Rules of Court, Rule 3.1324, for an order granting leave to amend the cross-complaint to add three parties and four causes of action. Specifically, Cross-Complainants seek an order allowing them to add (a) as Cross-Defendants, Berkley Assurance Company ("BAC"), RT Specialty, LLC and RSG Specialty, LLC, and (b) four causes of action as follows: (i) Breach of Contract and Tortious Breach of the Implied Covenant of Good Faith and Fair Dealing against BAC, (ii) Negligence Against RT Specialty, LLC and RSG Specialty, LLC (collectively, "Insurance Producers"), and (iii) Declaratory Relief against BAC and the Insurance Producers.

The hearing on the matter was continued by *ex parte* order, dated 6/1/26, and an order, dated 6/3/26, to remedy Defendants' untimely notice of the hearing to BAC. The Court now realizes there is no Proof of Service of any relevant papers (i.e., the original May 13 notice and moving papers, the May 21 amended notice and moving papers, or the two orders dated June 1 and 3), on the two other proposed Cross-Defendants, the Insurance Producers. Moreover, neither Insurance Producer filed an opposition to the Motion. Rather than continuing the matter a third

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

time, and in light of the ruling as it pertains to BAC and the fact that the claims against the Insurance Producers appear to be derivative of those against BAC, the Court elects to DENY the Motion as to the Insurance Producers for lack of jurisdiction. (See *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

Defendants’ Reply improperly argues in support of purported amendments to the Cross-Complaint which were not contained in the Notice of Motion or sufficiently addressed in the Memorandum. (See Reply, 3:16-20.) Namely, Defendants’ Reply contends that their requested amendments include: (1) new facts as to Plaintiff Balcal Construction Inc. regarding the breach of written contract cause of action and (2) merges the most recent complaints filed in case no. 25CV000306 with case no. 23CV001364. It is improper to raise matters for the first time in Reply. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 316 [due process requires a party be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail]; *American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453 [“Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument”].) For this reason, the motion to amend the cross-complaint to add the abovementioned points is DENIED.

B. LEGAL STANDARD

The Court has discretion to permit a party, after notice, to file an amendment to a pleading on any terms as may be just. (See Code Civ. Proc., § 473, subd. (a).) Similarly, “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.) Typically, a court will exercise its discretion liberally in favor of allowing amendment of the pleadings in order that litigation may be tried on its merits. (See *Kauffman v. Bobo & Wood* (1950) 99 Cal.App.2d 322, 323.)

C. DISCUSSION

Although not easy to follow, the gravamen of Defendants’ argument and evidence as to BAC appears to be: (1) they discovered, in late 2025, that (a) BAC denied coverage to Plaintiff and (b) Defendants are listed as Additional Insurers under the BAC policy; (2) thereafter, Defendants, as Additional Insureds under the BAC Policy, tendered their defense to BAC, who denied coverage; and (3) Defendants now seek to add BAC as a cross-defendant to assert their rights as Additional Insureds. (Declaration of Vincent Martin Spohn (“Spohn Decl.”), 4:6-8, 5:1-2, 7:14:6-8, 4:26-5:2.)

In Opposition, BAC argues that the Motion should be denied because Defendants have no standing to sue BAC. BAC implicitly concedes that Defendants are Additional Insureds under the BAC Policy. However, BAC contends that the BAC Policy is a commercial general liability insurance policy, covering *third-party claims* seeking to establish the additional insured’s (i.e., Defendants’) liability for damages caused by the named insured’s (i.e., Plaintiff’s) work. (Declaration of Laure E. Stewart (“LES Decl.”), ¶¶ 7-8.) Here, BAC argues there is no third-

party claim against Defendants seeking to establish Defendants' liability for damage caused by Plaintiff's work. (*Id.*, ¶¶ 2-4, 9.) Rather, the only claim against Defendants is the underlying complaint by Plaintiff (i.e., the named insured). The claim by Plaintiff is not a third-party claim, nor is it a claim against Defendants seeking to establish Defendants' liability for damages caused by Plaintiff's work. Thus, BAC argues Defendants do not satisfy the standing requirements to sue under Additional Insured status.

BAC further argues that, to the extent Defendants are suing BAC as *Plaintiff's* insurer and not in their capacity as an Additional Insured—i.e., in an attempt to recover damages from BAC for the underlying conduct of its insured (Plaintiff)—this is improper under California law. “[G]enerally an insurer may not be joined as a party-defendant in the underlying action against the insured by the injured plaintiff. The fact that an insurer has agreed to indemnify the insured for any judgment rendered in the action does not make the insurer a proper party. Liability insurance is not a contract for the benefit of the injured party so as to allow it to sue the insurer directly.” (*Royal Indemnity Co. v. United Enterprises, Inc.* (2008) 162 Cal.App.4th 194, 205.) Only after judgment has been obtained against the insured and the injured party becomes a judgment creditor may the injured party/creditor seek damages against the insurer. (*Ibid.*)

In Reply, Defendants concede that they cannot add BAC as Plaintiff's insurer. Defendants argue that this is not the capacity in which they are seeking to add BAC. Rather, they seek to add BAC only in their capacity as Additional Insureds under the policy. (Reply, 7:5-8:8.)

With respect to their standing as Additional Insureds, Defendants argue that whether or not a third-party claim exists against them is not the standard; rather, it is the BAC policy's Additional Insured endorsement language that governs. Yet, Defendants do not dispute that the BAC Additional Insured endorsement provides only for third-party claims. In this sense, Defendants' reliance on the BAC policy's Additional Insured endorsement language, as opposed to the requirement that a third-party claim exists, is a distinction without a difference. In other words, BAC has shown that its policy's Additional Insured endorsement limits coverage to third-party claims against the additional insured which seek to establish the additional insured's liability for damages caused by the named insured's work. Thus, in order to state a claim against BAC, a third-party claim against Defendants is a prerequisite.

There do not appear to be any allegations in the amended complaint regarding underlying claims other than the present action. (Spohn Decl., Exh. B.) Moreover, the only claims addressed by Defendants in Reply do not appear to satisfy BAC's Additional Insured's endorsement. Defendants argue that the third-party claim against them is Plaintiff's complaint for monies owed, and/or Defendants' own cross-complaint against Plaintiff for construction defect compensation. *Defendants'* own cross-complaint is clearly not a third-party claim *against Defendants*. Thus, that argument is rejected. The Court has a hard time construing Plaintiff's complaint against Defendants as a third-party claim, as it is undisputed that Plaintiff is the primary insured under the BAC policy. Defendants' argument that “California courts routinely find [Additional Insured] status and a duty to defend where the owner and contractor are suing each other over money owed and construction defects” is not supported by any authority. (See Reply, 7:20-25.)

Finally, Defendants’ argument that a court does not consider the validity of the proposed amended pleading on a motion for leave is overstated. A court of course has discretion to deny leave to amend where a proposed amendment fails to state a legally valid cause of action or defense. (*Cal. Casualty Gen. Ins. Co. v. Sup. Ct.* (1985) 173 Cal.App.3d 274, 280-81.) Such denial is most appropriate where the pleading is deficient as a matter of law and the defect could not be cured by further appropriate amendment. (*Ibid.*) Here, for the reasons discussed above, it appears to the Court that Defendants’ claims against BAC are deficient as a matter of law and that the defect cannot be cured by amendment.

Based on the foregoing, as well as the fact that trial in this matter is only 3.5 months away, and the case has been continued multiple times, the motion is DENIED.

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Mark Andrews v. Richard Rockwell et al

24CV000304

DEFENDANT ENTERPRISE RENT-A-CAR CO. OF SAN FRANCISCO, LLC’S MOTION
TO STRIKE THE FIRST AMENDED COMPLAINT AND DEMURRER

TENTATIVE RULING: The matter is CONTINUED to July 22, 2026, at 8:30 a.m. in Dept. A.

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Colt Builders Corp. v. Russell Square Consulting, Inc. et al

25CV000412

[1] PLAINTIFF’S MOTION TO COMPEL RESPONSES TO REQUESTS FOR
ADMISSION BY JSP AMERICAN CANYON LLC; REQUEST FOR MONETARY
SANCTIONS

TENTATIVE RULING: The motion is DENIED. The parties’ respective requests for sanctions are DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Colt Builders Corp. (“Plaintiff”) moves, pursuant to Code of Civil Procedure sections 2033.220, subdivision (a), and 2033.290, subdivision (d),³ for an order compelling Defendant JSP American Canyon LLC (“JSP”) to serve verified responses to Plaintiff’s Requests

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

for Admission (“RFA”), without preliminary or boilerplate objections. In addition, Plaintiff seeks an award of monetary sanctions in the amount of \$2,580 plus \$60 court costs against JSP and its counsel, jointly and severally, for their failure to provide code compliant responses to the discovery requests, and lack of good faith thereon.

The motion is DENIED as to RFA Nos. 1-2 and 4-9 on the ground that the motion is untimely. Unless extended by written agreement of the parties, the deadline for a motion to compel further responses is 45 days from the service of the verified responses. (§ 2033.290, subd. (c).) The discovery responses were served March 10, 2026. (See Declaration of James G. Higgins (“Higgins Decl.”), ¶ 5.) Thus, the deadline to move to compel a further response thereon was April 28, 2026. (§ 2033.290, subd. (c); 1010.6, subd. (a)(3)(B).) Plaintiff’s counsel’s contention in Reply that “JSP never stated, nor was it my understanding, that there was an earlier deadline of April 28, 2026 to move to compel” does not eliminate the statutory deadline. (Reply Declaration of James G. Higgins (“Reply Higgins Decl.”), ¶ 2.)

The evidence submitted by the parties makes clear that JSP granted an extension of the deadline to move to compel only as to RFA Nos. 3-4. (Higgins Decl., ¶ 6, Exh. C (PDF p. 28); Declaration of Alexander (A.J.) Pinto (“Pinto Decl.”), ¶ 3-4.) The Court recognizes that the parties were engaged in meet and confer communications at the time the original deadline came and went. However, that fact does not obviate the statutory deadline. Counsel are tasked with seeking a written extension agreement and complying with statutory deadlines if no agreement is reached. The Court acknowledges Plaintiff’s purported confusion regarding the scope of the granted extension, and further notes that the grant of extension occurred two days after the original deadline already passed. However, as noted, the scope is clear to the Court based on the parties’ email correspondence. Plaintiff fails to state or show when it requested the extension, or the precise discovery requests contained with its extension request to support Plaintiff’s counsel’s belief that JSP’s grant of extension was to “all open discovery requests.” (Reply Higgins Decl., ¶ 2.)

The present motion was filed June 11, 2026 without a written agreement extending the statutory deadline from April 28, 2026 for RFA Nos. 1-2 and 4-9. Thus, the motion as to those RFAs is DENIED. (*Vidal Sassoon, Inc. v. Sup.Ct. (Halpern)* (1983) 147 Cal.App.3d 681, 685 [court lacks jurisdiction to order further answers after 45 days].)

B. LEGAL STANDARD

“On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete. (2) An objection to a particular request is without merit or too general.” (§ 2033.290, subd. (a).)

The statutory authority for a motion to compel a further response to requests for admissions contains language identical with that providing for a motion to compel further response to interrogatories. (§§ 2030.300, subd. (b) and 2033.290, subd. (b).) Unlike the authority for a motion to compel further responses to production of documents, section 2033.290 does not require a showing of good cause justifying the discovery sought. (See §§ 2031.310,

subd. (b)(1) and 2033.290, subd. (b).) Based on the foregoing, while the party propounding requests for admissions may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting the request. (See *Coy v. Super. Ct.* (1962) 58 Cal.2d 210, 220-21.)

C. LEGAL DISCUSSION

The motion is DENIED as to RFA Nos. 3-4. In Opposition, JSP clarifies the specific portion of the Preliminary Statement challenged by Plaintiff, such that the Court does not find that its incorporation by reference into the responses to RFA Nos. 3-4 renders the responses meaningless, contrary to Plaintiff's assertion. (See Opposing Separate Statement, 9:4-14.) Moreover, JSP has justified the applicability of the objections asserted in response to these RFAs. (*Id.*, 8:14-9:3.) Plaintiff fails to address or dispute JSP's justification of the objections in Reply.

In light of Plaintiff's unsuccessful motion, Plaintiff's request for sanctions, made pursuant to section 2033.290, subdivision (d), is DENIED. JSP's request for sanctions, made under section 2031.210, subdivision (h) is DENIED on the grounds that JSP fails to provide any applicable authority in support of its request. As JSP acknowledges, Section 2031.210 applies to requests for document demands. The present motion concerns requests for admissions.

[2] PLAINTIFF'S MOTION TO COMPEL RESPONSES AND PRODUCTION OF DOCUMENTS RE REQUEST NOS. 11, 12, AND 13 BY JSP AMERICAN CANYON LLC; REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING: The motion is DENIED in part and GRANTED in part. The motion to compel JSP to produce documents in compliance with its responses to the subject document demands is GRANTED. JSP shall produce all responsive documents no later than July 31, 2026. To the extent any documents are withheld on privacy or privilege grounds in response to the subject document demands, JSP is directed to produce, simultaneously with the document production, a privilege log. The motion to compel further responses to the subject document requests is DENIED. The parties' respective requests for sanctions are DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Colt Builders Corp. ("Plaintiff") moves, pursuant to Code of Civil Procedure sections 2031.320, subdivisions (a)-(b), 2031.220, 2031.240, 2031.280, and 2031.310,

subdivision (h),⁴ for an order compelling Defendant JSP American Canyon LLC (“JSP”) to produce documents in response to Plaintiff’s Requests for Production of Documents (“RPD”) Nos. 11, 12, and 13, without preliminary or boilerplate objections. In addition, Plaintiff seeks an award of monetary sanctions in the amount of \$1,612.50 plus \$60 in court costs against JSP and its counsel, jointly and severally, for their failure to produce documents and provide code-compliant responses.

As an initial matter, it is unclear from the Notice of Motion whether Plaintiff seeks further responses to these document demands or whether it seeks compliance with JSP’s responses agreeing to produce responsive documents. A review of the Separate Statement indicates that Plaintiff seeks both.

The motion to compel further responses is untimely. Unless extended by written agreement of the parties, the deadline for a motion to compel further responses is 45 days from the service of the verified responses. (§ 2030.300, subd. (c).) The subject discovery responses were served March 10, 2026. (See Declaration of James G. Higgins (“Higgins Decl.”), ¶ 5.) Thus, the deadline to move to compel a further response thereon was April 28, 2026. (§ 2030.300, subd. (c); 1010.6, subd. (a)(3)(B).) Plaintiff’s counsel’s contention in Reply that “JSP never stated, nor was it my understanding, that there was an earlier deadline of April 28, 2026 to move to compel” does not eliminate the statutory deadline. (Reply Declaration of James G. Higgins (“Reply Higgins Decl.”), ¶ 2.)

The evidence submitted by the parties makes clear that JSP granted an extension of the deadline to move to compel only as to RPD Nos. 7-9 and 14-16. (Higgins Decl., ¶ 7, Exh. C (PDF p. 28); Declaration of Alexander (A.J.) Pinto (“Pinto Decl.”), ¶ 3.) The Court recognizes that the parties were engaged in meet and confer communications at the time the original deadline came and went. However, that fact does not obviate the statutory deadline. Counsel are tasked with seeking a written extension agreement and complying with statutory deadlines if no agreement is reached. The Court acknowledges Plaintiff’s purported confusion regarding the scope of the granted extension, and further notes that the grant of extension occurred two days after the original deadline already passed. However, as noted, the scope is clear to the Court based on the parties’ email correspondence. Plaintiff fails to state or show when it requested the extension, or the precise discovery requests contained with its extension request to support Plaintiff’s counsel’s belief that JSP’s grant of extension was to “all open discovery requests.” (Reply Higgins Decl., ¶ 2.)

The present motion was filed June 11, 2026 without a written agreement extending the statutory deadline from April 28, 2026. Thus, the motion to compel further responses to RPD Nos. 11-13 is DENIED. (*Vidal Sassoon, Inc. v. Sup.Ct. (Halpern)* (1983) 147 Cal.App.3d 681, 685 [court lacks jurisdiction to order further answers after 45 days].)

B. LEGAL DISCUSSION

With respect to the motion to compel compliance with JSP’s agreement to produce documents, there is no statutory or jurisdictional deadline. If the responding party agrees to

⁴ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

comply with a section 2031.010 demand but then fails to do so, compliance may be compelled on appropriate motion. (§ 2031.320.) All that has to be shown is the responding party's failure to comply as agreed. (*Ibid.*; see *Standon Co., Inc. v. Sup.Ct. (Kim)* (1990) 225 Cal.App.3d 898, 903.)

Here, Plaintiff shows that JSP has not produced all responsive documents despite agreeing to in response to the subject document requests. (Higgins Decl., ¶¶ 6, 9.)

In Opposition, JSP implicitly concedes it has not produced all responsive documents. It responds that, upon receipt of the motion, it reached out to Plaintiff to provide a date certain for production (July 31, 2026). Plaintiff disregarded that offer and proceeded with its motion.

Based on the foregoing, the motion to compel JSP's compliance with its agreement to produce responsive documents is GRANTED. JSP shall do so by July 31, 2026.

Given the mixed success of Plaintiff's motion and JSP's opposition, the parties' competing requests for sanctions, made pursuant to section 2031.310, subdivision (h), are DENIED.

[3] PLAINTIFF'S MOTION TO COMPEL PRODUCTION OF DOCUMENTS
RESPONSIVE TO REQUEST NOS. 7-9, 14-16 BY JSP AMERICAN CANYON LLC;
REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING: The motion is DENIED in part and GRANTED in part. The motion to compel JSP to produce documents in compliance with its responses to the subject document demands is GRANTED. JSP shall produce all responsive documents no later than July 31, 2026. To the extent any documents are withheld on privacy or privilege grounds in response to the subject document demands, JSP is directed to produce, simultaneously with the document production, a privilege log. The motion to compel further responses to the subject document requests is DENIED. Plaintiff's request for sanctions is DENIED. JSP's request for sanctions is GRANTED IN PART. Plaintiff is ordered to pay to JSP, care of its attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of \$2,500. JSP is directed to provide notice of entry of this order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Colt Builders Corp. ("Plaintiff") moves, pursuant to Code of Civil Procedure sections 2031.320, subdivision (a), 2031.220, 2031.240, 2031.320, subdivision (b) and 2031.310,

subdivision (h),⁵ for an order compelling Defendant JSP American Canyon LLC (“JSP”) to produce documents in response to Plaintiff’s Requests for Production of Documents (“RPDs”) Nos. 7, 8, 9 and 14, 15, and 16, without preliminary or boilerplate objections. In addition, Plaintiff seeks an award of monetary sanctions in the amount of \$1,612.50 plus \$60 in court costs against JSP and its counsel, jointly and severally, for their failure to produce documents and provide code-compliant responses.

As with Plaintiff’s concurrently filed motion regarding RPD Nos. 11-13, it is unclear from the Notice of Motion whether Plaintiff seeks further responses to these document demands or whether it seeks compliance with JSP’s response agreeing to produce responsive documents. A review of the Separate Statement indicates that Plaintiff seeks both.

B. LEGAL STANDARDS

On receipt of a response to a document demand, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (§ 2031.310, subd. (a).)

A party moving to compel responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (§ 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

If the responding party agrees to comply with a section 2031.010 demand but then fails to do so, compliance may be compelled on appropriate motion. (§ 2031.320.) All that has to be shown is the responding party’s failure to comply as agreed. (*Ibid.*; see *Standon Co., Inc. v. Sup.Ct. (Kim)* (1990) 225 Cal.App.3d 898, 903.)

C. DISCUSSION

With respect to the motion to compel further responses, Plaintiff’s Separate Statement sets forth no fact-specific showing of relevance for the RPDs. The Separate Statement repeats a single sentence that the subject “responses are chock-full of preliminary objections and boilerplate objections that render it impossible to know what JSP is actually agreeing to produce. Here, JSP fails to comply with the Discovery Act.” This is insufficient to meet Plaintiff’s burden on the motion. (See § 2031.310, subd. (b)(1) [a party moving to compel responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.”].) As such, the motion to compel further responses is DENIED.

⁵ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

With respect to the motion to compel JSP’s compliance, Plaintiff shows that JSP has not produced all responsive documents despite agreeing to in response to the subject document requests. (Declaration of James G. Higgins, ¶¶ 6, 9.) JSP implicitly concedes it has not produced all responsive documents. It responds in Opposition that, upon receipt of the motion, it reached out to Plaintiff to provide a date certain for production (July 31, 2026). Plaintiff disregarded that offer and proceeded with its motion.

Based on the foregoing, the motion to compel JSP’s compliance with its agreement to produce responsive documents is GRANTED. JSP shall do so by July 31, 2026.

The Court DENIES the parties’ competing requests for sanctions under section 2031.310, subdivision (h), in light of the mixed success of Plaintiff’s motion and JSP’s opposition.

JSP does not only move for sanctions under section 2031.310, but also under sections 2023.010 and 2023.020 based on Plaintiff’s failure to meet and confer regarding JSP’s purportedly deficient *supplemental* responses prior to bringing the present motion. “Notwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (§ 2023.020.) Here, JSP shows that, following receipt of JSP’s supplemental responses to the subject document demands on May 15, 2026, Plaintiff failed to meet and confer on the supplemental responses prior to bringing the motion. (Declaration of Alexander (A.J.) Pinto (“Pinto Decl.”) ¶ 4.) Plaintiff does not meaningfully dispute this in Reply. Plaintiff only contends that it properly met and conferred regarding the motion to compel JSP’s compliance with the production of documents, which fails to address the basis for JSP’s sanctions request.

Thus, JSP’s request for sanctions pursuant to section 2023.020 is GRANTED IN PART. The Court finds 7 combined hours preparing the opposing documents reasonable. (Pinto Decl., ¶¶ 6-7.) However, the Court does not find the hourly rate charged by counsel to be within the reasonable or customary range in the Napa County. (See Pinto Decl. at ¶¶ 7-8.) The Court reduces the hourly rates to \$300 for associate attorney McKee and \$500 for partner attorney Richmond. Based on the foregoing, Plaintiff is ordered to pay to JSP, care of its attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of (5 hrs x \$300/hr + 2 hrs x \$500) = \$2,500.

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Kevin Coluccio et al v. Thomas Trainor et al

25CV001138

CROSS-DEFENDANT CALMAT CO. dba SHAMROCK MATERIAL’S DEMURRER TO
CROSS-COMPLAINT, THREE SOLES INC. dba TRAINOR BUILDERS’ CROSS-
COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to July 29, 2026, at 8:30 a.m. in
Dept. A.

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DEMURRER

TENTATIVE RULING: The demurrer is SUSTAINED. Plaintiff is granted 10 Court days' leave, from Notice of Entry of Order, to file a Second Amended Complaint. This leave is limited, however, to making amendments aimed at properly substituting Rene Trejo, Elva Trejo, and Rene Trejo Jr. for fictitiously named Doe Defendants.⁶ Moving Defendants shall serve and file Notice of Entry of Order. The August 4, 2026, Case Management Conference is continued to October 8, 2026, at 8:30 am in Department A.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendants Rene Trejo, Elva Trejo, and Rene Trejo Jr. (collectively Defendants) demur, pursuant to Code of Civil Procedure 430.10, subdivisions (e) and (f), to Plaintiff's First Amended Complaint (FAC). Defendants argue that the FAC alleges facts that demonstrate that the claims asserted against them are barred by the statute of limitations.

A general demurrer will lie "where the complaint has included allegations that clearly disclose some defense or bar to recovery." (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) Where a plaintiff has pled facts that appear to demonstrate an affirmative defense to the claims, they must then "plead around" the defense by alleging facts sufficient to avoid the apparent defense. (See *Gentry v. eBay Inc.* (2002) 99 Cal.App.4th 816, 825.) However, "[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar . . . to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]" (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781 (*Geneva Towers*).)

The original Complaint, filed August 27, 2025, purported to assert a cause of action for general negligence involving a motor vehicle against CSAA Insurance Group and Does 1 through 4. It did not name any of the moving Defendants. On January 14, 2026, Plaintiff filed the Amended Complaint asserting a cause of action for general negligence involving a motor vehicle against each of the moving Defendants and Does 1 through 3, but not against CSAA Insurance Group. The Amended Complaint (like the original Complaint) contains an allegation that "date

⁶ Any other amendment requires additional leave of Court.

of accident [was] 9/22/2023.” (See *id.* at ¶ 15.) Plaintiff alleges personal injury as well as personal property damages. (See *id.* at ¶ 14.)

The limitations period for an action for personal injury damages is two years. (See Code Civ. Proc. § 335.1.) This period applies to motor vehicle claims. (See *Litwin v. Estate of Formela* (2010) 186 Cal.App.4th 607, 618-619 [applying statute and holding, “complaint filed . . . for claims arising from an automobile accident . . . was untimely because it was filed more than two years after the accident”].) “Statutes of limitation are favored by the law . . .” (*Kunstman v. Mirizzi* (1965) 234 Cal.App.2d 753, 757.)

Because the Amended Complaint was filed more than two years after the alleged date of the accident, the Court finds that the Amended Complaint clearly discloses facts that show that the claim against Defendants is apparently barred by the Statute of Limitations.

In opposing the Motion, Plaintiff argues that “[t]he First Amended Complaint merely substitutes the true names of Defendants for previously designated Doe Defendants in the original Complaint filed on August 27, 2025.” (Opposition at 2:1-2.) He further contends that “[a]t the time the original Complaint was filed, Plaintiff was genuinely ignorant of the identities of the individuals and entities who may have been operating the subject vehicle and of legal ownership of that vehicle.” (*Id.* at 2:5-7.)

“The general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed. [Citations] A recognized exception to the general rule is the substitution under [Code of Civil Procedure section 474] of a new defendant for a fictitious Doe defendant named in the original complaint as to whom a cause of action was stated in the original complaint. [Citations.] If the requirements of section 474 are satisfied, the amended complaint substituting a new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed. [Citation.]” (*Woo v. Super. Ct.* (1999) 75 Cal.App.4th 169, 176 (*Woo*).)

As in *Woo*, Plaintiff here “made no apparent attempt to satisfy this procedural requirement.” (*Woo, supra*, 75 Cal.App.4th at 176.) The Amended Complaint adds each of the Defendants but does not identify them as substitutes for previously named fictitious defendants. (See *ibid.*) Rather, the attachment to the Amended Complaint expressly states that, by it, Plaintiff seeks to “remove CSAA Insurance Group as the sole defendant and replace it with Rene Trejo, Elva Trejo, and Rene Trejo Jr.” Moreover, while the original Complaint names four Doe Defendants, the Amended Complaint, in addition to the three newly named Defendants, continues to name three Doe Defendants. Finally, as in *Woo*, Plaintiff served each of the Defendants in their individual names, and not as a defendant previously served under a fictitious name. (See *ibid.*)

Based on the foregoing, the demurrer is SUSTAINED.

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) “[T]he courts of this state have considered noncompliance with the party substitution requirements of section 474 as a procedural defect that could be cured and have been lenient in permitting rectification of the defect.” (*Woo, supra*, 75 Cal.App.4th at 177.)

Defendants further contend that “[t]he facts underlying the incident including the identity of the driver and vehicle owner were necessarily known or readily ascertainable at the time of the original complaint.” (Support Memo at 4:22-24.) “A further and nonprocedural requirement for application of the section 474 relation-back doctrine is that [plaintiff] must have been genuinely ignorant of [newly named defendant’s] identity at the time she filed her original complaint.” (*Woo, supra*, 75 Cal.App.4th at 177.)

The Court finds nothing in the allegations of either the Complaint or the Amended Complaint that clearly disclose either: (1) that Plaintiff knew the identity of the Defendants, or any of them, as of the filing of the original Complaint; or (2) circumstances from which such knowledge was readily ascertainable.

Based on the foregoing, the Court sustains the demurrer with leave to amend.

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Robert Breed v. Adventist Health St. Helena et al

26CV000093

[1] DEFENDANT’S MOTION TO COMPEL COMPLIANCE WITH DEPOSITION
SUBPOENAS

TENTATIVE RULING: The motion is GRANTED IN PART. Each of the Employers (defined below) is ordered to produce to Defendant Adventist Health St. Helena (the Hospital), within 21 calendar days of Notice of Entry of the instant ruling, the following documents:

1. Any and all documents responsive to any of Category Nos. 1-4 and/or 7-9 of the subject Subpoenas, which (documents) were created or delivered on or after April 19, November 2024; and,
2. Documents sufficient to identify the dates of Mr. Breed’s employment.

The Hospital’s request for an award of monetary sanctions is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

The Hospital moves, pursuant to Code of Civil Procedure §1985.3 and 1985.6, for an Order compelling third parties Emerald Health Services (Emerald), Sutter Davis Hospital (Sutter), and the Center for Specialized Surgery (Specialized, and collectively Employers) to comply with respective deposition subpoena for production of Plaintiff Robert Breed's employment records served by Defendant on each.

Through the Opposition Mr. Breed argues that he has not waived objections to the subpoenas by failing to timely bring a motion to quash. (See, *e.g.* Opposition at 2:17-19.) First, the Court does not find any assertion of such waiver in the Hospital's moving papers. The Hospital correctly noted that (as of the filing of the instant motion) Mr. Breed had not filed such motion(s) – the statutory means for timely asserting his right to privacy. But the Court does not read this as an argument that Mr. Breed waived his objections. Second, even assuming, *arguendo*, that such argument was raised, the Court finds that, while a failure to timely file a motion to quash exposes a party to the risk that the third party will respond to the subpoena, it does not, by itself, constitute a waiver of objections to the subpoena. (See *Slagle v. Super. Ct.* (1989) 211 Cal.App.3d 1309, 1312 [“Nothing in the procedure . . . suggests that a court lacks jurisdiction to consider a motion to quash if it is brought after the date set forth in the subpoena for production”].)

Moreover, on June 1, 2026, Mr. Breed filed four Motions to Quash, three of which address, respectively, the Subpoenas at issue here. The three memoranda filed in support of the respective motion to quash appear to be identical with one another and advance the same arguments advanced through his Opposition to the instant motion.

B. GOOD CAUSE FOR PRODUCTION

Pursuant to California's Civil Discovery Act, A civil litigant's right to discovery is broad. “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010; see *Davies v. Super. Ct.* (1984) 36 Cal.3d 291, 301 [“discovery is not limited to admissible evidence”].) “A trial court must be mindful of the Legislature's preference for discovery over trial by surprise, must construe the facts before it liberally in favor of discovery, may not use its discretion to extend the limits on discovery beyond those authorized by the Legislature, and should prefer partial to outright denials of discovery.” (*Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 540.) “California's pretrial discovery procedures are designed to minimize the opportunities for fabrication and forgetfulness, and to eliminate the need for guesswork about the other side's evidence, with all doubts about discoverability resolved in favor of disclosure.” (*Glenfed Development Corp. v. Super. Ct.* (1997) 53 Cal.App.4th 1113, 1117 (*Glenfed*).)

“Although the scope of civil discovery is broad, it is not limitless.” (*Calcor Space Facility v. Super. Ct.* (1997) 53 Cal.App.4th 216, 223 (*Calcor*) “In the . . . context of a request to produce documents, a party who seeks to compel production must show ‘good cause’ for the

request (§ 2031, subd. (l)) – but where . . . there is no privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance.” (*Glenfed, supra*, 53 Cal.App.4th 1117.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed, supra*, 53 Cal.App.4th at 1117.) A finding of relevance may be supported simply by the claims or defenses asserted through the pleadings. ((*Kirkland v. Super. Ct.* (2002) 95 Cal.App.4th 92, 98.) Where such showing cannot be established by reference to the pleadings, the burden on the party seeking discovery is to “produce *evidence* from which the court may determine” that “the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (*Calcor, supra*, at p. 223, emphasis in original.)

Each of the three subject subpoenas seeks the same nine categories of documents, and each is, through a preamble to the respective Amended Attachment 3, limited to the timeframe March 1, 2023, to present. (See Declaration of Nicole Baarts at Exhs. E, F, and G (Baarts Decl.).) The Hospital argues that these categories are relevant to the following issues – “whether Plaintiff improperly maintained dual employment with Defendant and another employer while Plaintiff was on a medical leave of absence from Defendant; whether Plaintiff was unable to work while on leave from Defendant; whether Plaintiff’s functional limitations existed during prior employment; and whether Plaintiff’s resume and interrogatory responses accurately reflect his work history.” (Support Memorandum at 8:1-6.) With one exception, discussed below, the Court agrees.

C. PLAINTIFF’S CONSTITUTIONAL RIGHT TO PRIVACY

Mr. Breed argues that the documents sought by the subject subpoenas should be shielded from discovery based on his constitutional right to privacy. (See, *e.g.*, Opposition at 3:13, *et seq.*) Mr. Breed unquestionably enjoys a right to privacy which extends to his personal employment records. (*Board of Trustees v. Super. Ct. of Santa Clara Co.* (1981) 119 Cal.App.3d 516, 526 [held “personnel, tenure, and promotion files” were subject to the Constitutional right of privacy], overruled on other grounds by *Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 552, discussed below.)

Discovery orders implicating privacy rights are evaluated under the framework established in *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1 (*Hill*), reiterated in *Pioneer Electronics (USA), Inc. v. Super. Ct.* (2007) 40 Cal.4th 360 (*Pioneer*), and further developed in *Williams*.

“In *Hill*, we established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation.]” (*Williams, supra*, 3 Cal.5th at 552.)

Mr. Breed contends that “[w]hen a discovery request implicates the constitutional right to privacy, the party seeking the information . . . faces a heightened burden: they must demonstrate a compelling public interest, and they must show that the information sought is directly relevant and narrowly tailored to the specific dispute.” (Opposition at 3:15-19.) Not so. “Courts must instead place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies, as *Hill* requires. What suffices to justify an invasion will . . . vary according to the context. [Citation.]” (*Williams, supra*, 3 Cal.5th at 557.)

“First, the privacy claimant must possess a legally protected privacy interest, of which there are two general types, autonomy privacy (the interest in making intimate personal decisions or conducting personal activities without observation, intrusion or interference) and informational privacy. Informational privacy—the form at issue in this case – is the interest ‘in precluding the dissemination or misuse of sensitive and confidential information.’ [Citation.] Information in this class is deemed private ‘when well-established social norms recognize the need to maximize individual control over its dissemination and use to prevent unjustified embarrassment or indignity.’ [Citation.] Second, the privacy claimant must have a reasonable expectation of privacy under the specific circumstances, including ‘customs, practices, and physical settings surrounding particular activities [which] may create or inhibit reasonable expectations of privacy.’ [Citation.] Third, actionable invasions of privacy ‘must be sufficiently serious in their nature, scope, and actual or potential impact to constitute an egregious breach of the social norms underlying the privacy right.’ [Citation.] Finally, if the three criteria for invasion of a privacy interest exist – a legally protected privacy interest, a reasonable expectation of privacy under the particular circumstances, and a serious invasion of the interest – then the privacy interest ‘must be measured against other competing or countervailing interests in a “balancing test.”’ [Citations.] *Pioneer* explained: “Conduct alleged to be an invasion of privacy is to be evaluated based on the extent to which it furthers legitimate and important competing interests.’ [Citation.] Protective measures, safeguards and other alternatives may minimize the privacy intrusion. ‘For example, if intrusion is limited and confidential information is carefully shielded from disclosure except to those who have a legitimate need to know, privacy concerns are assuaged.’ [Citation.] [Citation.]” (*Alch v. Super. Ct.* (2008) 165 Cal. App. 4th 1412, 1423-1424.)

“‘Plaintiff is not compelled, as a condition to entering the courtroom, to discard entirely [his] mantle of privacy.’ [Citation.] Although the filing of a lawsuit may be deemed a waiver of privacy as to matters embraced by the action, we have emphasized that the scope of this waiver ‘must be narrowly rather than expansively construed.’ [Citations.] Matters that would otherwise be protected by the constitutional privacy right are discoverable only if ‘directly relevant to the plaintiff’s claim and essential to the fair resolution of the lawsuit.’ [Citation.] The party seeking access to constitutionally protected information has the burden of proving direct relevance. [Citation.]” (*Heller v. NorCal Mutual Ins. Co.* (1994) 8 Cal.4th 30, 60 (*Heller*).)

As noted above, the Court finds that Mr. Breed has a privacy interest in maintaining the confidentiality of his employment records. The Court further finds that Mr. Breed has a reasonable expectation that his employers will maintain the confidentiality of such information.

Finally, the Court finds that the discovery of such information in the present lawsuit constitutes a serious invasion of Mr. Breed's privacy interest in the information.

Mr. Breed contends that the document requests at issue are overbroad. (See, *e.g.*, Opposition at 3:26-4:6 ["While Defendant may be entitled to limited discovery regarding Plaintiff's mitigation of damages or physical capacity during his leave period, they are absolutely not entitled to wholesale access to his permanent personnel files, performance evaluations, and disciplinary histories across multiple unrelated employers"].)

The Hospital notes, however, that "Plaintiff has placed his mental health, including the onset and severity, his need for leave, and his earnings history squarely at issue" in the litigation. (See Reply at 4:13-14.) As noted above, "the filing of a lawsuit may be deemed a waiver of privacy as to matters embraced by the action . . ." (*Heller, supra*, 8 Cal.4th at 60.)

In the Court's view, both parties, through their moving and opposition papers, oversimplify the nature of the Mr. Breed's Amended Complaint. Mr. Breed represents the action as one seeking redress for sexual harassment. This ignores his allegations of "severe emotional and mental distress" and disability. (See, *e.g.*, Amended Complaint at ¶¶ 34, 38-39, 41, 42, 47, 49, 54, 58, 67, 70-71, 75-76, and 90.) The Hospital, on the other hand, ignores the allegations that these conditions arose specifically as a result of the alleged sexual harassment.

The Hospital further asserts that "Defendant's investigation to date suggests that Plaintiff was working at other health care entities while he was on leave from Defendant" and that Mr. Breed has misrepresented, to Hospital and to the public (through his LinkedIn profile) the dates of his employment with the Employers. (See Reply at 4:19-23; see also Baarts Decl. at ¶ 2 and Exh. C, and Declaration of Michael Fanselau at ¶ 2 and Exh. A.) Mr. Breed acknowledges that the subject LinkedIn profile is his and contends that it is simply outdated. (See Declaration of Robert Breed at ¶¶ 5-7, and Exh. A.)

Against the foregoing, the Court balances the extent to which production of the sought-after documents furthers legitimate and important competing interests.

D. LEGAL ANALYSIS

1. Document Categories

The Court finds that each of Category Nos. 1 ["documents that pertain to [Mr. Breed's] application for employment"], 2 ["documents related to [Mr. Breed's] disability or requests for accommodations"], 7 ["documents that pertain to any workers' compensation claims filed by [Mr. Breed]"], 8 ["documents that pertain to [Mr. Breed's] time records (including time records transmitted to a separate entity that employed [Mr. Breed])"], and 9 ["documents that pertain to [Mr. Breed's] resignation or termination from employment."] are, subject to the temporal limitation discussed below, relevant to Mr. Breed's allegations that he suffered severe emotional and mental distress and was mentally disabled and unable to work as a result of the alleged harassment. They are also relevant to Mr. Breed's representations as to his work history.

The Court further finds that each of Category Nos. 3 [“documents that pertain to any employee benefits offered to and/or received by the Subject”], and 4 [“documents that pertain to any remuneration offered to and/or received by the Subject for any reason”] are, subject to the temporal limitation discussed below, relevant to the issue of Mr. Breed’s ability to mitigate, and actual mitigation of, his alleged damages.

Mr. Breed alleges that he “was employed by Defendants . . . from on or about April 19, 2024, and is still currently employed with Defendant [sic].” (Amended Complaint at ¶ 3.) He further alleges that the harassment began in or around November 2024.

In this context, the Court finds, on the current record, that the Hospital’s interest in discovery of the foregoing categories (Nos. 1-4 and 7-9) outweighs Mr. Breed’s right to privacy in and to his employment records as to any such documents that were either (1) created or (2) delivered (to an Employer or to Mr. Breed according to the nature of the category) on or after April 19, 2024. Each Employer is, therefore, ordered to produce all such documents to the Hospital in response to the respective subpoena.

Through his Motions to Quash, Mr. Breed contends that “[a]ll of these positions completely pre-date Plaintiff’s employment with Defendant, which began on April 19, 2024.” (Motion to Quash Support Memo at 6:3-4.) The statement is not supported by evidence. To be clear, however, if no documents responsive to any of Category Nos. 1-4 and/or 7-9 were created or transmitted to the respective Employer on or after April 19, 2024 (with partial exceptions for Category Nos. 1 and 9, discussed below) then no documents need be produced in response to the subpoenas.

The Hospital fails to persuade the Court that good cause exists for the production of documents identified in either Category No. 5 [“documents that pertain to any paid or unpaid suspension of the Subject that resulted in preventing the Subject from receiving a pay increase”] or No. 6 [“documents that pertain to any discipline, counseling, or coaching provided to the Subject that resulted in preventing the Subject from receiving a pay increase”].

As to *pre-April 19, 2024*, documents responsive to Category No. 1 [“documents that pertain to [Mr. Breed’s] application for employment”] and No. 9 [“documents that pertain to [Mr. Breed’s] resignation or termination from employment”], the Court finds that the Hospital’s interest in discovery of the inclusive dates of Mr. Breed’s employment, regardless of the timing thereof, is relevant to his credibility, *vis-à-vis* his LinkedIn posts and his representations to the Hospital regarding other employment.

Thus, the Employers shall also produce documents sufficient to identify the inclusive dates of Mr. Breed’s employment.

2. Sanctions

Through its Supporting Memorandum, and relying on Code of Civil Procedure section 1987.2, subdivision (a), the Hospital urges the Court to issue monetary sanctions against Mr. Breed for his actions relating to the subject subpoenas.

With exceptions having no apparent relevance here, “the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

The Court finds no evidence that Mr. Breed opposed the motion in bad faith. Moreover, as noted above, the Court finds that the subject document requests are overbroad. For this reason, the Court finds that the opposition was made with substantial justification.

Based on the foregoing, the Hospital’s request for an award of monetary sanctions is DENIED.

[2] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM SUTTER DAVIS HOSPITAL

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff’s request for an order quashing the subject subpoena is DENIED. Plaintiff’s request for a protective order is GRANTED IN PART. Sutter Davis Hospital is under no obligation to produce any documents in response to the subject subpoena other than:

1. Any and all documents responsive to any of Category Nos. 1-4 and/or 7-9 of the subject Subpoenas, which (documents) were created or delivered on or after April 19, November 2024; and,
2. Documents sufficient to identify the dates of Mr. Breed’s employment.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Robert Breed moves, pursuant to Code of Civil Procedure 1987.1, to quash, or in the alternative, for a protective order as to the deposition subpoena for business records issued to the Custodian of Records for Sutter Davis Hospital.

The instant motion raises the same issues and seeks the same *result* as Mr. Breed’s Opposition to the concurrent Motion to Compel Compliance with Deposition Subpoenas filed by Defendant St. Helena Hospital. Similarly, the issues raised by Defendant St. Helena Hospital through the Opposition to the instant motion are redundant to the arguments it presents in

support of its Motion to Compel. The Court fully analyzes the parties' arguments and the issues in its ruling on that motion, and the instant ruling is made on the same grounds.

[3] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER
AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM KAISER
PERMANENTE OAKLAND MEDICAL CENTER

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff's request for an order quashing the subject subpoena is DENIED. Plaintiff's request for a protective order is GRANTED IN PART. Kaiser Permanente Oakland Medical Center is under no obligation to produce any documents in response to the subject subpoena other than:

1. Any and all documents responsive to any of Category Nos. 1-4 and/or 7-9 of the subject Subpoenas, which (documents) were created or delivered on or after April 19, November 2024; and,
2. Documents sufficient to identify the dates of Mr. Breed's employment.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Robert Breed moves, pursuant to Code of Civil Procedure 1987.1, to quash, or in the alternative, for a protective order as to the deposition subpoena for business records issued to the Custodian of Records for Kaiser Permanente Oakland Medical Center.

The instant motion raises the same issues and arguments raised by Mr. Breed through his Opposition to the concurrent Motion to Compel Compliance with Deposition Subpoenas filed by Defendant St. Helena Hospital. While the instant subpoena was not at issue in that Motion to Compel, it involves identical categories of documents. Similarly, the issues raised by Defendant St. Helena Hospital through the Opposition to the instant motion are redundant to the arguments it presents in support of its Motion to Compel. The Court fully analyzes the parties' arguments and the issues in its ruling on that motion, and the instant ruling is made on the same grounds.

[4] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER
AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM CENTER FOR
SPECIALIZED SURGERY

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff's request for an order quashing the subject subpoena is DENIED. Plaintiff's request for a protective order is

GRANTED IN PART. The Center for Specialized Surgery is under no obligation to produce any documents in response to the subject subpoena other than:

1. Any and all documents responsive to any of Category Nos. 1-4 and/or 7-9 of the subject Subpoenas, which (documents) were created or delivered on or after April 19, November 2024; and,
2. Documents sufficient to identify the dates of Mr. Breed's employment.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Robert Breed moves, pursuant to Code of Civil Procedure 1987.1, to quash, or in the alternative, for a protective order as to the deposition subpoena for business records issued to the Custodian of Records for Center for Specialized Surgery.

The instant motion raises the same issues and seeks the same *result* as Mr. Breed's Opposition to the concurrent Motion to Compel Compliance with Deposition Subpoenas filed by Defendant St. Helena Hospital. Similarly, the issues raised by Defendant St. Helena Hospital through the Opposition to the instant motion are redundant to the arguments it presents in support of its Motion to Compel. The Court fully analyzes the parties' arguments and the issues in its ruling on that motion, and the instant ruling is made on the same grounds.

[5] MOTION TO QUASH, OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER AS TO THE SUBPOENA FOR BUSINESS RECORDS FROM EMERALD HEALTH SERVICES, INC.

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff's request for an order quashing the subject subpoena is DENIED. Plaintiff's request for a protective order is GRANTED IN PART. Emerald Health Services, Inc. is under no obligation to produce any documents in response to the subject subpoena other than:

1. Any and all documents responsive to any of Category Nos. 1-4 and/or 7-9 of the subject Subpoenas, which (documents) were created or delivered on or after April 19, November 2024; and,
2. Documents sufficient to identify the dates of Mr. Breed's employment.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Robert Breed moves, pursuant to Code of Civil Procedure 1987.1, to quash, or in the alternative, for a protective order as to the deposition subpoena for business records issued to the Custodian of Records for Emerald Health Services, Inc.

The instant motion raises the same issues and seeks the same *result* as Mr. Breed's Opposition to the concurrent Motion to Compel Compliance with Deposition Subpoenas filed by Defendant St. Helena Hospital. Similarly, the issues raised by Defendant St. Helena Hospital through the Opposition to the instant motion are redundant to the arguments it presents in support of its Motion to Compel. The Court fully analyzes the parties' arguments and the issues in its ruling on that motion, and the instant ruling is made on the same grounds.

.....
James Keener et al v. DB Insurance Co., LTD

26CV000162

MOTION OF DEFENDANT DB INSURANCE CO., LTD. (U.S. BRANCH) TO DISMISS OR STAY THIS ACTION PENDING THE OUTCOME OF THE EARLIER FILED FEDERAL COURT CASE

TENTATIVE RULING: The Court finds that the interests of justice, judicial economy, and comity are best served by hearing and resolving the instant motion after resolution, by the U.S. District Court for the Northern District of California (District Court) of James Keener's pending Motion to Stay the Federal Action (Federal Motion). The Court, therefore, sets the matter for an OSC re: Federal Motion on August 20, 2026, at 8:30 a.m. in Dept. A. Should the District Court issue a ruling on the Federal Motion prior to the OSC hearing, Plaintiff is directed to file a copy thereof in this action in the form of a Request for Judicial Notice. The Court will not hear the instant motion on August 20, 2026, but may, on that date and as appropriate, set the matter for hearing and request additional briefing.

The Case Management Conference is continued to October 8, 2026, at 8:30 am in Department A.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendant DB Insurance Co., Ltd. (U.S. Branch), (DBIC) moves, pursuant to principles of comity, for an Order granting its motion to dismiss or stay the instant action, filed by Plaintiff James Keener, pending resolution of the action that DBIC filed first in the United States District Court for the Northern District of California involving overlapping issues.

DBIC's request for judicial notice is GRANTED. The Court takes judicial notice of the Complaint filed October 30, 2025, in the matter *DB Insurance Co., Ltd. (U.S. Branch) v. Keener, et al.*, bearing Case No. 3:25-cv-09343-TSH, in the District Court (Federal Action and Federal Complaint), but not for the truth of any matters alleged therein. The Court takes judicial notice that, through the Federal Complaint, DBIC seeks to rescind the same insurance policy (Policy) at issue in the instant litigation. (*Id.* at ¶ 13.)

The instant litigation was commenced January 26, 2026, by the filing of the original Complaint by Plaintiff James Keener, both individually and as Trustee for the James H. Keener 401K Profit Sharing Plan.

The gravamen of the instant action is that Plaintiff James Keener, in his individual capacity as well as in his capacity as Trustee of the James H. Keener 401k Profit Sharing Plan, suffered damages as a result of DBIC's breach of the Policy. (See, generally, First Amended Complaint for Damages (FAC).) The alleged damages stem from a worker's compensation claim made by Ruben Rueda Marquez, who is alleged to have been hired by Mr. Keener to do tree work at the subject property. (See *id.* at ¶¶ 17-22.) Mr. Keener alleges that he tendered the claim to DBIC, and co-defendant Aegis General Insurance Agency (Aegis) and the defendants failed and refused to defend Plaintiff against the claims. (See *id.* at ¶ 23.) Based on these allegations, Mr. Keener asserts claims against DBIC and Aegis for breach of the Policy including breach of the implied covenant of good faith and fair dealing, and declaratory relief relating to the parties' respective duties and obligations under the Policy. He also asserts a claim against Mr. Marquez for fraud / intentional misrepresentation arising from allegations that Mr. Marquez represented himself as a licensed and bonded contractor.

"A plaintiff can maintain concurrent state and federal court actions arising from the same facts and circumstances [Citation], albeit the plaintiff risks having his or her state court or federal court action barred by *res judicata* if a judgment is rendered in the other case." (*Benitez v. Williams* (2013) 219 Cal.App.4th 270, 276.) "It is black letter law that, when a federal action has been filed covering the same subject matter as is involved in a California action, the California court has the discretion but not the obligation to stay the state court action." (*Caiafa Professional Law Corp. v. State Farm Fire & Casualty Co.* (1993) 15 Cal.App.4th 800, 804 (*Caiafa*).) "'In exercising its discretion, the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced.'" (*Ibid* quoting *Farmland Irrigation Co. v. Dopplmaier* (1957) 48 Cal.2d 208, 215.) Finally, the fact that the Federal action is pending in a Federal Court in California weighs in

favor of staying the state court action in favor of the Federal action.” (See *Caiafa, supra*, at p. 804; see also *Thomson v. Continental Ins. Co.* (1967) 66 Cal.2d 738, 747.)

Mr. Keener’s Request for Judicial Notice is GRANTED as to Exhibit 4. The Court takes judicial notice of Mr. Keener’s Notice of Motion to Stay Federal Proceedings filed in the Federal Action on May 7, 2026, but not for the truth of any matters set forth therein.⁷ The Court agrees with Mr. Keener that the U.S. District Court’s ruling on the pending Federal Motion may well impact the ongoing relevance and applicability of, and/or this Court’s analysis of, the instant Motion. The Court notes that, just as the Federal Action was filed prior to the instant action, the Federal Motion was filed prior to the instant Motion.

Based on the foregoing, the Court finds that the interests of justice, judicial economy, and comity are served by hearing and resolving the instant motion after resolution of the Federal Motion.

.....
Vladimir Privalov v. Villa Zinfandel LLC et al

26CV000675

DEMURRER TO PLAINTIFF’S COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to July 31, 2026, at 8:30 a.m. in Dept. B. The Court has reviewed Defendant’s Notice of Non-Service of Opposition, which asserts that it did not receive any opposition from Plaintiff and requests that any opposition be disregarded. The Court notes that there is an opposition on file, accompanied by a Proof of Service showing timely service on Defendant. Thus, the Court declines to grant Defendant’s request to disregard the Opposition. Rather, Plaintiff is ordered to immediately serve, no later than 4:00 p.m. on July 10, 2026, the file-endorsed copy of his opposing papers. Defendant is granted leave to file and serve, no later than 4:00 p.m. on July 17, 2026, a Reply.

.....
Thomas Kensok et al v. Alison A. Barstad

26CV000834

MOTION TO VACATE STAY OF PROCEEDINGS

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

⁷ The Court defers ruling on the remaining subjects of Mr. Keener’s Request for Judicial Notice until such time as those subjects become relevant. (See *In re Tobacco Cases, II*, JCCP 4042 (2004) 123 Cal.App.4th 617, 626 [“Although a court may take judicial notice of a variety of matters [citation], only relevant material may be noticed.” [Citation.]”].)

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiffs Synergist Law, P.C. and Law Offices Of Thomas Kensok (collectively, “Plaintiffs”) move, pursuant to Business and Professions Code sections 6200-6206 and Code of Civil Procedure section 1281.2,⁸ for an order: (1) Overruling Defendant’s Notice of Stay of Proceedings (Judicial Council Form CM-180) filed on May 4, 2026; (2) Vacating any stay of proceedings imposed or claimed; (3) Finding that Defendant Alison A. Barstad waived her right to mandatory fee arbitration by filing her Answer on May 4, 2026, before service of her Request for Arbitration upon Plaintiffs was perfected on May 8, 2026; and (4) Ordering this action to proceed to determination on the merits.

The matter originally came on for hearing on June 9, 2026. The Court posted a Tentative Ruling the day prior, which continued the matter to allow the moving party to file and serve proof that they provided State Bar-approved notice on the State Bar’s mandated form, which the Court noted was a prerequisite to the requested relief. The Tentative Ruling was adopted as the Order of the Court. (6/9/26 Minute Order.) Plaintiffs timely filed the proof.

Thereafter, on June 18, 2026, Defendant filed a Supplemental Declaration in Support of her Opposition to the present motion (“Def Suppl. Decl.”). Attached thereto is an order, dated June 16, 2026, by the Presiding Arbitrator in the parties’ pending State Bar arbitration matter. The order is on Plaintiffs’ Counsel’s objection to Defendant’s request for arbitration, made on the same grounds as Plaintiffs’ present motion. The Presiding Arbitrator overruled Plaintiffs’ objection, finding, in relevant part:

It is undisputed that [Defendant] timely submitted her Request with the State Bar in response to the Notice [of Client’s Right to Fee Arbitration] on February 8, 2026, which the State Bar deemed ‘filed’ on February 11, 2026. It is also undisputed that [Defendant] filed for fee arbitration well before [Plaintiff] filed their Superior Court lawsuit and before [Defendant] filed her Answer in response to the lawsuit. Also undisputed is the fact that the State Bar, and not [Defendant], served [Defendant’s] Request upon [Plaintiff]. ...

The relevant language of both Section 6201(b) (“failure to so request arbitration prior to the filing of an answer or equivalent response”) and Rule 3.502 (“does either of the following before submitting a Request for Arbitration”) compel a finding that the filing of Client’s Request with the State Bar is sufficient to preserve Client’s rights under Section 6201(b) and Rule 3.502. Service of the request upon Attorneys, which is done by the State Bar and not Client, is not required to preserve Client’s right to fee arbitration. Therefore, the Presiding Arbitrator finds that service of Client’s

⁸ All subsequent statutory references are to the Business & Professions Code unless otherwise specified.

Request by the State Bar upon Attorneys after Client filed her Answer in Superior Court did not waive Client's right to fee arbitration under Section 6201(b) or Rule 3.502.

(Def's Suppl. Decl., Exh. E (Order, 2:24-28, 4:16-24).)

B. RELEVANT BACKGROUND

The Complaint asserts four causes of action against Defendant arising from Defendant's alleged failure to pay Plaintiffs for the services provided in representing Defendant in a prior personal injury action. The Complaint prays *inter alia* for compensatory damages in a sum not less than \$301,158.21 and for third-party costs of \$26,865.62.

The following facts are taken from the Court file, the parties' declaration where sufficiently supported, and the parties' briefs where they appear undisputed:

On January 12, 2026, Plaintiffs served Defendant with a Notice of Client's Right to Fee Arbitration. (Mem., 5:1-2; see Opp., 2:19-22; Declaration of Alison A. Barstad ISO Opposition ("Def's Opp. Decl."), ¶ 6, Exh. A; Declaration of Sami Sedghani, ¶¶ 3-4.)

On March 12, 2026, the State Bar confirmed, via a letter sent to both Plaintiffs' counsel and Defendant, that Defendant's "request for arbitration of a fee dispute with attorney Sami Sedgani has been filed with this office...." (Def's Opp. Decl., ¶ 7, Exh. B.) The State Bar letter also provided a case number to Defendant for the Mandatory Fee Arbitration and indicated that her request for a waiver of the filing fee was received and under consideration, but that the State Bar was unable to take any further action on her request for arbitration until a decision was made on her request for a fee waiver. (*Ibid.*)

On April 10, 2026, Plaintiffs filed and served the Complaint. (See 4/10/26 Complaint; 4/21/26 Proof of Service.)

On May 4, 2026, Defendant filed and served an Answer and a Notice of Stay of Proceedings stating: "This case is stayed...with regard to all parties" based on "Arbitration of attorney fees and costs under Business and Professions Code section 6201." (5/4/26 Notice of Stay of Proceedings, ¶¶ 2(a), 3(d).) Paragraph 3(d) requires "a copy of the client's request for arbitration showing filing and service" to be attached to the Notice. While the Declaration of Alison A. Barstad in Support of the Notice of Stay purports to attach "Correspondence and/or submission relating to the Mandatory Fee Arbitration request" as Exhibit A, Exhibit A thereto is only a form for Defendant's Request for Waiver of the Arbitration Filing Fee, and there is no filing and service of that form shown. (See Declaration of Alison A. Barstad ISO Notice of Stay, Exh. A.)

On May 8, 2026, the State Bar electronically served Plaintiffs with a letter, indicating that "[c]lient's request for arbitration of a fee dispute in the above matter has been filed with this office," and enclosing four documents regarding next steps in the proceeding. (Mem., 5:8-10; Reply Declaration of T Thomas Kensok ("Reply Decl.") at ¶ 2, Exh. 1.)

C. LEGAL STANDARD

Business and Professions Code sections 6200 through 6206, known as the Mandatory Fee Arbitration Act (“MFAA”), establishes a program of fee arbitration that is voluntary for clients but mandatory for attorneys when invoked by the client. (See Rules of State Bar, rule 3.501(A).) Section 6201 prescribes the procedural mechanics.

Section 6201, subdivision (a) requires the attorney to give the client written notice of the right to arbitrate fees under the MFAA prior to or at the time of service of summons. Section 6201, subdivision (b) then describes the client’s path to invoke MFAA arbitration once the attorney has filed a collection court action. It provides, in relevant part:

[T]he client may stay the action or other proceeding by serving and filing a request for arbitration in accordance with the rules established by the board of trustees pursuant to subdivision (a) of Section 6200. The request for arbitration shall be served and filed prior to the filing of an answer in the action or equivalent response in the other proceeding; **failure to so request arbitration prior to the filing of an answer or equivalent response shall be deemed a waiver of the client’s right to arbitration** under the provisions of this article if notice of the client’s right to arbitration was given pursuant to subdivision (a).

(§ 6201, subd. (b). Emphasis added.)

Stated differently, “[a] Client’s right to request or maintain Fee Arbitration is waived if ... the Client receives the State Bar-approved notice regarding a Client’s right to arbitrate Fees but does either of the following **before submitting a Request for Arbitration**: (a) answers or otherwise responds to a complaint filed in court by the attorney; or (b) files a response in another proceeding regarding Fees initiated by the attorney.” (Rules of State Bar, rule 3.502(A)(3).)

Section 6201, subdivision (c) provides that “[u]pon filing and service of the request for arbitration, the [court] action [initiated by the attorney] shall be automatically stayed....” (See also Rules of State Bar, rule 3.511(A).)

D. DISCUSSION

Plaintiffs argue that, because Defendant answered the Complaint before the State Bar served her request for arbitration on Plaintiffs, Defendant waived her right to arbitration. Notably, Plaintiffs do not contend that Defendant failed to timely request arbitration with the State Bar. (See Rules of State Bar, rule 3.502(A) [requiring request for arbitration to be submitted to State Bar “within 30 days of client’s receipt of the State Bar-approved notice regarding a Client’s right to arbitrate Fees”].) Moreover, Plaintiffs do not dispute that they received notice of the State Bar’s March 12, 2026 correspondence, confirming receipt of Plaintiffs’ request for arbitration, prior to filing and serving their own complaint in this matter.

The Court does not find that Defendant waived her right to arbitration under section 6201, subdivision (a) or Rules of State Bar, rule 3.502. More pointedly, the Court does not find that the timing of the State Bar's service of Defendant's timely request for arbitration (confirmation of which request was served on Plaintiffs prior to the filing of their complaint and Defendant's answer) creates a waiver of Defendant's right to arbitration. Rather, making a request with the State Bar for arbitration is sufficient to preserve the client's rights under section 6201, subdivision (b) and rule 3.502. Moreover, the Court finds the Order, dated June 12, 2026, by the Presiding Arbitrator well-reasoned.

As such, the motion to vacate the stay is DENIED.

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Shirley Jo Kilgore v. Piner's Nursing Home

26CV001142

PLAINTIFF'S MOTION FOR TRIAL PREFERENCE

APPEARANCE REQUIRED: The Court finds good cause for GRANTING the motion. The parties are directed to appear to set the matter for trial.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Shirley Jo Kilgore moves, pursuant to Code of Civil Procedure section, 36(a) and (e), for an order granting trial preference and setting trial no later than 120 days from the date of hearing on this motion.

"A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc. §36, subd. (a).) "An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party." (Code Civ. Proc., § 36.5.)

The Court finds that Ms. Kilgore is over 70 years of age. While Defendant correctly objects that Plaintiff's counsel's declaration is insufficient to support this finding, Defendant

itself submits a Declaration from Plaintiff's son stating, on personal knowledge, that his mother was born on August 2, 1947. (See Declaration of Daniel McQueeney, attached to Opposition, at ¶ 1 (McQueeney Decl.).)

The Court finds that Ms. Kilgore has also submitted sufficient evidence to show that preference is necessary to prevent prejudicing Plaintiff's interest in the litigation. (See Declaration of Conor D. Trombetta at ¶¶ 2-4 (Trombetta Decl.), McQueeney Decl. at 4.)

Through the Opposition, Defendant argues that "the supporting declaration . . . does not contain any evidence . . . concerning any risk posed of Plaintiff's death or incapacity if trial is delayed." (*Id.* at 2:8-10.) Defendant fails, however, to cite to authority requiring evidence of a "risk of death or incapacity." Rather, the statute clearly requires a showing that "the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc., § 36, subd. (a); see also *Fox v. Super. Ct.* (2018) 21 Cal.App.5th 529, 534 (*Fox*) ["The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's 'health . . . is such that a preference is necessary to prevent prejudicing [her] interest in the litigation.'"])

The Court finds evidence sufficient to support such finding in Trombetta Decl. at ¶¶ 2-4. Finally, the Court finds no merit in Defendant's assertion that such a finding is undermined by matters in the McQueeney Decl. (See Opposition at 2:13-21.) The argument is based on an overly narrow conception of potential prejudice from delay in proceeding to trial. (See *Fox*, *supra*, at p. 534.)